

TENTATIVE RULING(S) FOR August 10, 2026

Department S37 – Judge Winston Keh

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

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UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2600196

Cruz vs Tancos

TENTATIVE RULING(S):

Before the Court is the Defendant's general demurrer to the single cause of action for negligence under Code of Civil Procedure Section 430.10, subdivision (e). Defendant contends that Plaintiffs' negligence cause of action is barred by the statute of limitations. Plaintiffs oppose arguing equitable estoppel applies. Defendant replies.

Meet and Confer Requirement

Under Section 430.41, subdivision (a), before filing a demurrer, the filing party is required to meet and confer at least five days before the filing, either by telephone, video conference, or in person, with the opposing party for the purpose of determining whether an agreement can be

reached to resolve the objections to the pleading. The moving party must file a declaration stating either the means of the meet and confer or that the other party failed to respond or confer in good faith. (Code of Civ. Proc. section 430.41, subd. (a)(3).) (Emphasis added.)

On March 20, 2026, Defendant's counsel e-mailed Plaintiffs' counsel requesting a 15-day extension to provide a responsive pleading because his firm was recently assigned the matter. Plaintiffs' counsel responded that she would grant the extension only if Defendant agreed to file an answer. Defendant's counsel then telephoned Plaintiffs' counsel the same day and again on March 23, 2026. Both times he was unable to speak with anyone. He then e-mailed Plaintiffs' counsel on March 23, 2026, advising her of Defendant's intentions to file a demurrer. As of the filing of the demurrer, Defendant's counsel has not received a response. (Yun Decl. ¶¶ 5-6; Ex. B.)

The demurrer was filed on March 24, 2026, requiring the meet and confer to have occurred no later than March 19, 2026. Given what occurred, the meet and confer is not met. Therefore, the Court could continue the demurrer for a proper meet and confer. But Plaintiffs' counsel has motions to be relieved as counsel set to be heard at the same time as the demurrer. Therefore, the Court will address the merits of this motion.

Judicial Notice

Defendant requests that the Court take judicial notice of Plaintiffs' complaint filed in this matter, under Evidence Code Sections 450 and 453. (Yun Decl. ¶ 2; Ex. A.)

The Court DENIES the request as unnecessary. Judicial notice is not required for the Court to consider the operative pleading.

Analysis

Defendant argues that under Section 335.1, the applicable statute of limitations is two years. Thus, given Plaintiffs allege that the negligent act that caused their injuries occurred on December 29, 2023, Plaintiffs were required to file their complaint by December 29, 2025. Because Plaintiffs filed their complaint on January 2, 2026, their negligence claim is banned by the statute of limitations.

Plaintiffs oppose the demurrer argue matters outside of the pleadings. They contend there was extensive pre-litigation conduct from Defendant's insurance company that supports equitable estoppel. Specifically, Plaintiffs argue that correspondences reflect that the insurance company continued investigating Plaintiffs' claims, requested additional documentation, represented that its evaluation remained ongoing, and engaged in continued settlement discussions after the expiration of Plaintiffs' original demand. Plaintiffs assert that this conduct induced Plaintiffs to continue pursuing settlement rather than file a lawsuit.

Plaintiff's counsel does attach a declaration and four exhibits to the opposition. Given that these documents are outside the pleading, they cannot be considered as part of the complaint (see *Del Mar Beach Club Owners Assn. v. Imperial Contracting Co.* (1981) 123 Cal.App.3d 898, 908 [discussing that documents incorporated by reference become part of the complaint].) Neither can the Court consider any additional factual allegations contained in Plaintiff's opposition. (*Barnett v. Fireman's Fund Ins. Co.* (2001) 90 Cal.App.4th 500, 505.)

Defendant's reply correctly points out that Plaintiffs' complaint does not allege any facts supporting equitable estoppel and that Plaintiffs cannot defeat a demurrer by asserting new facts in their opposition.

Nonetheless, Defendant's statute of limitations argument is only partially correct. As it relates to Plaintiffs' bodily injury claims, the complaint was filed more than two years after the date of the incident.

However, both parties fail to discuss that Plaintiffs' property damage claim is not subject to the two-year state of limitation under Section 335.1; instead, it is subject to a three year statute of limitations under Section 338, subdivision (c)(1).

Given the complaint only asserts one cause of action, the Court cannot sustain a demurrer to part of a cause of action. (*Kong v. City of Hawaiian Gardens Redevelopment Agency* (2002) 108 Cal.App.4th 1028, 1047.) The appropriate procedural device is for Defendant to bring a motion to strike improper allegations directed to portions of a claim. (*Caliber Bodyworks, Inc. v. Superior Court* (2005) 134 Cal.App.4th 365, 385, *disapproved on other grounds by ZB, N.A. v. Superior Court* (2019) 8 Cal.5th 175, 196 fn.8.)

Therefore, the Court OVERRULES Defendant's demurrer without prejudice to Defendant filing a motion to strike after a proper meet and confer.

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CIVSB2520796

Chase vs Bunch

TENTATIVE RULING(S):

On July 17, 2025, Plaintiff JPMorgan Chase Bank, N.A., filed a Complaint against Defendants Local European LLC, and Alexandra N. Bunch. Plaintiff alleges causes of action for (1) breach of contract (against Local European); (2) breach of guaranty (against Bunch); (3) breach of contract (against Local European); and (4) breach of guaranty (against Bunch). The Complaint arises out of two commercial loans made to Local European.

On October 6, 2025, Defendants answered.

Before the Court is Plaintiff Chase's motion for summary judgment as to each cause of action.

Plaintiff seeks a judgment of \$378,000.70 on the loans and guaranties.

To date, Defendants have not opposed.

ANALYSIS

MSJ

Plaintiff notices the motion as Issue Nos. 1 and 2 going to the breach of contract causes of action against Local European, and Issues Nos. 3 and 4 going to the breach of guaranty causes of action brought against Bunch. But the separate statement has the issues in the order of the causes of action.

With respect to the loans at issue. Plaintiff alleges that on June 14, 2022, it made a loan to Local European for \$200,000 (Loan 1). On May 29, 2024, it made another loan to Local European for \$270,000 (Loan 2). (Compl. ¶¶ 8, 12.) The respective loans included respective guaranties under which Defendant Bunch agreed to pay all obligations owed under the respective loans in the event Local European failed to do so. (Compl. ¶¶ 10, 14.)

Local European failed to make the May 2025 payment on Loan 1, and failed to make the February 2025 payment on Loan 2. Demands were made on Defendants for payment. As of June 16, 2025, the amount owed on Loan 1 is \$106,687.60, which includes principal, accrued interest, and late charges. And the amount owed on Loan 2 is \$263,200.10, which includes principal, accrued interest, and late charges and fees. (Compl. ¶¶ 16-23, 31, 35, 45, 49.)

Issue No. 1 – Breach of Contract re Loan 1 as to Local European. On or about June 14, 2022, Plaintiff made a loan to Local European in the original, principal amount of \$200,000. Loan 1 is evidenced by the Term Note dated June 14, 2022, in the principal face amount of \$200,000. The loan is also evidenced by a Credit Agreement dated June 14, 2022. Under the contract, Local European was required to make monthly payments of \$3,965.33, including interest beginning on July 14, 2022. All unpaid principal and accrued and unpaid interest would be due and payable on June 14, 2027. Beginning no later than May 2025, and at all times thereafter, Local European defaulted by failing to make monthly payments as they came due. (UFs 1-6.)

Under the terms of the contract, on default, Plaintiff was entitled to declare the loan, plus accrued but unpaid interest, fees, and other costs, immediately due. On or about May 8, 2025, Plaintiff

notified Local European that there had been a default and all sums were immediately due and payable. Local European failed to pay the outstanding amounts owed. Plaintiff is the legal holder and owner of the loan documents. As of June 16, 2025, Local European was indebted to Plaintiff in the principal amount of \$103,848.41, \$2,640.92 in accrued interest, and \$198.27 in late charges. (UFs 7-11.) Local European is indebted to Plaintiff for attorneys' fees of \$7,350, and costs of \$763.00. (UF 12.)

Issue No. 2 – Breach of Guaranty re Loan 1 as to Bunch. Plaintiff Chase sets forth the same basic facts as to Loan 1's origination, agreement, and default, as set forth above. (UFs 13-15, 19-22.) Loan 1 also included a Guaranty that provided that in the event of a default by Local European, Bunch shall pay any and all amounts due Plaintiff under Loan 1. The obligations under the Guaranty for Loan 1 are joint and several. On May 8, 2025, Plaintiff notified Bunch that there had been a default and all sums were immediately due and payable. Bunch failed to pay. (UFs 16, 23-27.) The same amount is stated as owed with respect Loan 1. (UFs 28-29.) Bunch waived the right to notice of Local European's default and demand of payment by Plaintiff. (UF 30.)

Issue No. 3 – Breach of Contract Loan 2 as to Local European. On or about May 29, 2024, Plaintiff made a loan to Local European in the original, principal amount of \$270,000. Loan 2 is evidenced by the Term Note dated May 29, 2024, in the principal face amount of \$270,000. Loan 2 is also evidenced by a Credit Agreement dated May 29, 2024. Under the contract, Local European was required to make monthly payments of \$4,271.79, including interest beginning on July 1, 2024. All unpaid principal and accrued and unpaid interest would be due and payable on June 14, 2031. Beginning no later than February 2025, and at all times thereafter, Local European defaulted by failing to make monthly payments as they came due. (UFs 31-36.)

Under the terms of the contract, on default, Plaintiff is entitled to declare the loan, plus accrued but unpaid interest, fees, and other costs, immediately due. On or about April 11, 2025, Plaintiff notified Local European that there had been a default and all sums were immediately due and payable. Local European failed to pay the outstanding amounts owed. Plaintiff is the legal holder

and owner of the loan documents. As of June 16, 2025, Local European was indebted to Plaintiff in the principal amount of \$252,431.19, \$9,700.96 in accrued interest, and \$1,067.95 in late charges. (UFs 37-41.) Local European is also indebted to Plaintiff for attorneys' fees of \$7,350 and costs of \$763.00. (UF 42.)

The Small Business Administration (SBA) guaranteed Loan 2. Following Local European's default, the SBA honored the guaranty and on December 8, 2025, paid Plaintiff Chase \$129,721.97, which Plaintiff Chase applied to Loan 2. (UFs 43-44.)

Local European and Bunch are still responsible to Chase for the entire indebtedness of \$271,313.19 under the loan documents, including the amount Chase received from the SBA. (UF 45.)

Issue No. 4 – Breach of Guaranty re Loan 2 as to Bunch. Plaintiff Chase sets forth the same basic facts as to Loan 2's origination, agreement, and default as set forth above. (UFs 46-48, 52-55, 57.) Loan 2 also included a Guaranty that provided that in the event of a default by Loan European, Bunch shall pay any and all amounts due Plaintiff under Loan 2. The obligations under the Guaranty for Loan 2 are joint and several. On April 11, 2025, Plaintiff notified Bunch that there had been a default and all sums were immediately due and payable. Bunch failed to pay. (UFs 49-51, 56, 58-59.) The same amount is stated as owed with respect to the first loan, payment received by SBA, and statement that the entire amount is still owed, including the amount received from the SBA. (UFs 60-62, 64-66.) Bunch waived the right to notice of Local European's default and demand of payment by Plaintiff. (UF 63.)

Breach of Contract. A cause of action for damages for breach of contract is comprised of the following elements: (1) the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to plaintiff. (*Bushell v. JPMorgan Chase Bank, N.A.* (2013) 220 Cal.App.4th 915, 921.)

Breach of Guaranty. With respect to breach of a guaranty, a surety or guarantor is one who promises to answer for the debt, default, or miscarriage of another. (*Central Building, LLC v. Cooper* (2005) 127 Cal.App.4th 1053, 1058, citing Civ. Code, § 2787.) The guarantor's obligation rests on the contract of guaranty. (*Neiderer v. Ferreira* (1987) 189 Cal.App.3d 1485, 1505.) A

contract of guaranty provides a separate and independent obligation on the guarantor from that which binds the principal debtor. (*Talbott v. Hustwit* (2008) 164 Cal.App.4th 148, 151.) To establish liability for breach of a written guaranty, the elements for a breach of contract must be demonstrated.

Merits. Plaintiff submits the motion on the Declaration of Veronica Escobar, a Special Credits Analyst I, with a corporate title of Associate. Escobar demonstrates that as part of her duties, she is an employee responsible for managing loans for Local European. She has access to Plaintiff's business records, including computerized records. Escobar establishes the foundation for admission of business records and sufficient foundation to testify to amounts owed on the loans and guaranties at issue. (Escobar Decl. ¶¶ 1-2.)

As for Escobar's testimony, it supports statements related to the loan agreements, guaranties, defaults, and demands. (Escobar Decl. ¶¶ 3-18 and Exhs. 1-9.)

As for the amount owed on Loan 1, UFs 11 and 28 state \$103,848.41 is owed, with \$2,640.92 in accrued interest, and \$198.27 in late charges and fees as of June 16, 2025. But in reviewing the account transaction history (Escobar Exh. 3), it is unclear how the interest amount was determined. In terms of what is owed, Escobar's declaration states: "Exhibit 3 reflects the payments made on the Contract 1 [Loan 1]. As of June 16, 2025, as stated in the Complaint, Chase is owed the principal balance of \$103,848.41, accrued interest of \$2,640.92, plus late fees and costs of \$198.27 for a total of \$106,687.60." (Escobar Decl. ¶ 6.) But the Complaint is not evidence. The Court surmises the amount is owed given on Exhibit 3 it show \$6,774.09 in accrued interest as of November 7, 2025, it is unclear how the \$2,640.92 figure was calculated. If Plaintiff's counsel can explain this, then the amount owed on Loan 1 is supported. Otherwise, it is unsupported.

As for the amount owed on Loan 2, UFs 41 and 61 state \$252,431.19 is owed, with \$9,700.96 in accrued interest, and \$1,067.95 in late charges and fees as of June 16, 2025. But in reviewing the account transaction history (Escobar Exh. 8), it is unclear how the interest amount was determined. Escobar's declaration states: "Exhibit 8 reflects the payments made on the Contract 2 [Loan 2]. As of June 16, 2025, as stated in the Complaint, Chase is owed the principal

balance of \$252,431.19 (\$122,709.22 + \$129,721.97), accrued interest of \$9,700.96, plus late fees and costs of \$1,067.95 for a total of \$263,200.10.” (Escobar Decl. ¶ 14.) Again, the Complaint is not evidence. It is likely this amount is owed given Exhibit 8 shows \$19,984.70 in interest charge off as of December 10, 2025. The issue, however, is that it is unclear how the \$9,700.96 figure was calculated as owed as of June 16, 2025. If Plaintiff’s counsel can explain this, then the amount owed on Loan 2 is supported.

Plaintiff also submits the declaration of its counsel in support of the amount of attorney fees and costs due. (Partington Decl. ¶¶ 1-2.)

In UFs 1-66, Plaintiff will meet its initial burden in support of the loans, defaults, guaranties, and amounts owed if the amount of interest owed on Loans 1 and 2 as of June 16, 2025 can be explained.

RULING

The Court continues the hearing on this motion to September 4, 2026 at 830 a.m. in Dept. S37 to give counsel an opportunity to submit supplemental declaration in support of the accrued interest sought as of June 16, 2025. The due date to submit evidence explaining the interest shall be due on or before August 21, 2026.